MEASURE G

PROPOSAL TO AMEND PLACER COUNTY CHARTER SECTION 206

Shall the measure amending Article II, Section 206 of the Placer County Charter to extend the deadline for filling a vacancy on the Board of Supervisors from 30 days to 60 days, providing additional time for the Board to make an appointment before the Governor fills the vacancy, and requiring vacancies occurring 130 days or more before a statewide direct primary election be filled temporarily by appointment and placed on the ballot at that election, be adopted?

YES ____ **NO ____**

COUNTY COUNSEL'S IMPARTIAL ANALYSIS OF MEASURE G

The Placer County Charter is the governing document that establishes the organizational structure, powers, duties, and responsibilities of the county's elected and appointed officials. Measure G would amend Section 206 of the Placer County Charter relating to the procedure for filling a vacancy on the Board of Supervisors.

Under the current Placer County Charter, a vacancy on the Board of Supervisors must be filled by a unanimous vote of the remaining members. If the remaining Board members fail to fill the vacancy within 30 days of its occurrence, the authority to appoint a replacement transfers to the Governor of California.

If approved, this measure would amend the Charter to alter the vacancy filling process in two distinct ways. First, the period during which the remaining members of the Board of Supervisors can fill the vacancy by unanimous vote would double from 30 days to 60 days. This provides additional local time before the appointment power transfers to the Governor. Second, the amendment establishes procedures for an election to fill the remainder of unexpired terms. If the vacancy occurs 130 days or more before the next scheduled statewide direct primary election, the Board's appointee will only serve temporarily. The vacancy will be submitted to the voters at that upcoming primary election, allowing the voters to elect a representative to serve out the remaining unexpired term. If the vacancy occurs less than 130 days before the next statewide direct primary election, the appointed individual would serve the remainder of the unexpired term.

This measure was placed on the ballot by the Board of Supervisors of the County of Placer through adoption of Ordinance 6381-B. Approval by a majority of voters voting on this measure is required for its adoption.

A "YES" vote on Measure G is a vote to amend the Placer County Charter to extend the period for appointment by the Board of Supervisors from 30 days to 60 days and to establish procedures for an election to fill the remainder of an unexpired term under specified circumstances.

A "NO" vote on Measure G is a vote to leave the current Charter language unchanged, including the 30-day period for appointment by the Board of Supervisors and the existing procedure for appointment by the Governor if the Board does not fill the vacancy within that period.

This analysis is submitted by the Office of the County Counsel of the County of Placer pursuant to the requirements of Section 9160 of the Elections Code of the State of California.

Clayton T. Cook, County Counsel

The above statement is an impartial analysis of Measure G. If you desire a copy of the measure, please call the Placer County Registrar of Voters at 530-886-5650 (toll-free 1-800-824-8683) and a copy will be mailed at no cost to you.

NO ARGUMENT IN FAVOR OF MEASURE G WAS SUBMITTED

NO ARGUMENT AGAINST MEASURE G WAS SUBMITTED

PROPOSED CHARTER TEXT REVISION

If a majority of the electorate of Placer County approves the above question, then Article II, Section 206 of the Placer County Charter shall be amended as follows:

Sec. 206 Vacancies.
If a vacancy occurs on the Board of Supervisors, it shall be filled by the unanimous vote of the remaining members, and if they shall fail to make such appointment within ~~30~~ 60 days of the occurrence of any such vacancy, then such vacancy shall be filled by the Governor; provided that any appointment under this section shall be of a person who for at least 30 days prior to ~~his~~ their appointment has been a resident of the supervisorial district in which the vacancy exists. If the appointment is made one hundred thirty (130) days or more before the next statewide direct primary election, the vacancy shall be filled temporarily by appointment, but the office shall be placed on the ballot at the statewide direct primary election, and the person elected shall serve the remainder of the unexpired term. If the appointment is made less than one hundred thirty (130) days prior to the next statewide direct primary election, the appointee shall serve the remainder of the unexpired term.